COURT OF APPEALS
STATE OF NEW YORK

In the Matter of Letitia James, etc., Appellant, v. Daniel Donovan, etc., Respondent-Respondent. (Index No. 080304/14)	
In the Matter of Legal Aid Society, Appellant, v. Daniel Donovan, etc., Respondent-Respondent. (Index No. 080296/14)	**NOTICE OF MOTION FOR LEAVE TO APPEAL TO THE COURT OF APPEALS**
In the Matter of New York Civil Liberties Union, Appellant, v. Daniel Donovan, etc., Respondent-Respondent. (Index No. 080307/14)	Richmond County AD No. 2015-02774
In the Matter of NYP Holdings, Inc., etc., Petitioner, v. Daniel Donovan, etc., Respondent. (Index No. 080308/14)	
In the Matter of Staten Island Branch of National Association for Advancement of Colored People, etc., et al., Appellants, v Daniel Donovan, etc., Respondent-Respondent. (Index No. 080009/15)	

PLEASE TAKE NOTICE that, pursuant to Rule 500.22 of this Court, Appellant New York Civil Liberties Union (NYCLU) will move this Court for an order granting leave to appeal from a final judgment and decision of the Appellate Division, Second Department entered on July 29, 2015 in this matter.

This motion shall be returnable in the Court of Appeals at 20 Eagle Street, Albany, New York at 9:00 am on Monday, August 24, 2015. Any opposing papers shall be served at least two days before this return date.

PLEASE TAKE FURTHER NOTICE that, if this Court grants leave to appeal, Appellant requests that, pursuant to Rule 500.17(b), this Court also grant a calendar preference setting this appeal for argument during the November 2015 session. To that end, Appellant further requests that the Court set a briefing schedule requiring the submission of Appellant's opening brief by September 30, 2015; Respondent's brief by October 30, 2015; and Appellant's reply brief by November 13, 2015. Support for this application is presented in a statement appended to this notice of motion.

Dated: New York, New York
August 14, 2015

Respectfully,

Arthur Eisenberg

Arthur Eisenberg
Corey Stoughton
Philip Desgranges
New York Civil Liberties Union
Foundation
125 Broad Street, 19th Floor
New York, New York 10004
(212) 607-3300

Counsel for Appellant
New York Civil Liberties Union

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Exhibit A: Notice of Entry and Decision &
Order of the Appellate Division ..... Ex. A1

Exhibit B: Decision & Order of the Supreme Court, Richmond County ... Ex. B1

Note: Pursuant to conversations between the office of the Clerk of this Court and counsel for the Legal Aid Society of New York City who are seeking to appeal from the same Appellate Division decision below, the Joint Appendix from the Appellate Division and the briefs of the parties in the lower court are to be submitted by counsel for the Legal Aid Society on behalf of all the parties now seeking leave to appeal from the same Appellate Division decision.

STATEMENT OF THE PROCEDURAL HISTORY OF THE CASE

In this case, the NYCLU sought an order pursuant to C.P.L. § 190.25(4) mandating the public disclosure of the transcript of the grand jury proceedings relating to the death of Eric Garner. This application was narrowed, however, by the proposed redaction of "any name and any personally identifiable information regarding grand jurors, witnesses or individuals from the Office of the District Attorney of Richmond County ...." (J.A. 182).[1] The NYCLU application further requested "the instructions given to the grand jury, in the Eric Garner matter, regarding relevant principles of law, including without limitation, Penal Law §35.30 pertaining to a police officer's use of physical force in making an arrest." (J.A. 182). And it requested "a comprehensive list of evidence presented to the grand jury ...." (J.A. 183). Finally, the application sought "physical and documentary evidence presented as exhibits to the grand jury ... including four videos, records regarding NYPD policies and procedures, photographs of the scene and records pertaining to NYPD training, except that autopsy photographs and medical records pertaining to Mr. Garner" were not requested. (J.A. 183).

[1] "J.A." refers to the Joint Appendix originally filed with the Appellate Division, Second Department, and submitted to this Court by counsel from the Legal Aid Society in support of the coordinated motions for leave to appeal from the Appellate Division's order.

The NYCLU application was initiated with the filing of an Order to Show Cause with notice to the District Attorney. The Order to Show Cause was signed and entered in the Supreme Court, Richmond County on December 11, 2014, setting the matter down for a hearing. Oral argument regarding the NYCLU application was heard by Justice William Garnett of the New York State Supreme Court, Richmond County, on February 5, 2015 along with arguments presented in connection with similar petitions presented by counsel from the Legal Aid Society, the Public Advocate of New York City, the New York Post and the Staten Island branch of the National Association for the Advancement of Colored People (NAACP).

On March 19, 2015, Supreme Court, Richmond County denied the relief requested by each of the petitioners. (Ex. B at 1-12 of the Decision & Order). The NYCLU served and filed a Notice of Entry and Notice of Appeal on April 2, 2015. (J.A. 39). The Legal Aid Society, the Public Advocate and the NAACP, which had filed parallel applications for disclosure of the Garner grand jury materials, also appealed. The appeals were consolidated for oral argument in the Appellate Division, which took place on June 16, 2015.

On July 29, 2015, the Appellate Division, Second Department rendered a decision and final order affirming the Supreme Court's decisions below and denying each of the petitions seeking disclosure of the Garner grand jury

materials. (Ex. A of the Decision & Order). The order of the Appellate Division was entered on July 29, 2015. *Id.* Notice of Entry was served upon all parties to the appeal on August 10, 2015. *Id.*

JURISDICTIONAL STATEMENT

CPLR § 5602 permits an appeal to be taken to the Court of Appeals by "permission of the Court of Appeals ... upon direct application" to the Court. Under this provision, such appeal may be taken "in an action originating in the Supreme Court ... from an order of the appellate division which finally determines the action ...." *Id.* The issue of "finality" is addressed in CPLR § 5611 which provides, in part, that "[i]f the appellate division disposes of all the issues in the action, its order shall be considered a final one ...."

On March 19, 2015, a decision and order was entered in the Supreme Court, Richmond County denying, in all respects, the application of the NYCLU for the disclosure of the grand jury materials in connection with the death of Eric Garner. (JA 8-19). This denial constituted a final decision in response to the NYCLU's application. A notice of entry of the March 19, 2015 order was served upon the Richmond County District Attorney on April 2, 2015 and a timely Notice of Appeal was served and filed on April 2, 2015. (J.A. 39).

The Appellate Division, Second Department's decision and order in the appeal was entered on July 29, 2015. (Ex. A of the Decision & Order). The order affirmed the lower court's denial of the "petitions submitted by [each of] the appellants [seeking] to release grand jury minutes and evidence based upon CPL §190.24(4)(a) ...." (Ex. A at 9 of the Decision & Order). The order, in

effect, terminated, with finality, those proceedings. A Notice of Entry was served upon all parties to the appeal on August 10, 2015. (Ex. A at 1 of the Notice of Entry). This motion for leave to appeal, dated August 14, 2015, is being taken within 30 days of the Notice of Entry. (*Id.*) And, as noted above, this appeal is being taken from the legal errors and the misapplication of law committed by the court below.

STATEMENT OF QUESTIONS PRESENTED FOR REVIEW AND REASONS WHY THE QUESTIONS PRESENTED MERIT REVIEW BY THIS COURT

The question at the heart of this case is whether New York's statutory presumption in favor of grand jury secrecy should erect an impenetrable barrier to transparency where, as here, there are extraordinary and compelling interests that support disclosure of grand jury materials.

The death of Eric Garner at the hands of police officers and the grand jury investigation that ended without an indictment has provoked unprecedented discussion and public debate about whether the grand jury system, as currently designed, is capable of ensuring accountability for criminal misconduct by law enforcement officers. These discussions are part of a larger national conversation about police practices and criminal justice reform. News from around the country – Ferguson, Cleveland, South Carolina, Baltimore, Texas – continuously adds fresh fuel to a raging public debate about how the police interact with communities of color and whether government adequately holds law enforcement accountable for misconduct.

In New York, this debate has centered on the Garner case and the public perception that aggressive policing practices, which disproportionately target people of color, led to Mr. Garner's fatal encounter with the police. Debate has focused most acutely on the grand jury that was convened to investigate Mr.

Garner's death and upon the seemingly inexplicable outcome of that investigation. The failure to indict has severely shaken the public's confidence in the fairness of the grand jury system and prompted various, conflicting policy proposals ranging from abolishment of the grand jury,[2] to reform of its practices,[3] to no change at all.[4]

The Garner grand jury is plainly the precipitating event giving rise to the debate over reform. It is central to the conversation. Yet, the debate is taking place without the policymakers or the public really knowing what happened in the grand jury room and why the grand jury reached the result that it did. Can the disconnect between public perceptions and the outcome of the grand jury's investigation be explained by the fact that the grand jurors heard testimony or saw visual evidence of which the public was unaware? Was the outcome a result of the District Attorney's inherent conflict when called upon to investigate

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[2] (J.A. 235).

[3] A.B. 6509, 238th Leg., Reg. Sess. (N.Y. 2015) (designating what materials could be disclosed via court order when there is no indictment); A.B. 8084, 238th Leg., Reg. Sess. (N.Y. 2015) (providing for the release of the legal instructions and charges given to a grand jury in cases involving a death or injury resulting from an encounter with a police officer); A.B. 7697, 238th Leg., Reg. Sess. (N.Y. 2015) (providing for the release of the legal instructions and charges given to a grand jury); A.B. 7194, 238th Leg., Reg. Sess. (N.Y. 2015) (providing judicial oversight over grand jury proceedings); A.B. 3462/S.B. 1828, 238th Leg., Reg. Sess. (N.Y. 2015) (providing district attorneys the authority to release grand jury testimony, evidence, or any decision in the interest of justice or upon a valid written request).

[4] Andrew Keshner, *DA Group Urges Garner Grand Jury Record Be Kept Secret*, New York Law Journal, Jan. 20, 2015 (available at http://www.newyorklawjournal.com/id=1202715476630/DA-Group-Urges-Garner-Grand-Jury-Record-Be-Kept-Secret) (last accessed 5/4/2015) (subscription required) (reporting on the position taken by the New York State Association of District Attorneys as *amicus curiae* in the court below).

police officers? Was there some legal error in the instructions given to the Garner grand jury that explains its failure to hold the officer accountable despite compelling video evidence of misconduct? Do the specific inquiries of the grand jurors reveal some inherent flaw in relying on grand juries to assess culpability in officer-involved shootings? The lack of answers to these questions means that the legislators and members of the public who are considering grand jury reform in response to the Garner grand jury result are trying to fashion a "fix" without really knowing what is broken.

This lack of public knowledge is incompatible with the understanding that democracy works best when public policy choices are undertaken by an informed electorate and their representatives. That understanding lies at the heart of the First Amendment. "Implicit in [the] structural role [of the First Amendment] is not only 'the principle that debate on public issues should be uninhibited, robust and wide-open,' but also the antecedent assumption that valuable public debate—as well as other civic behavior—must be informed." *See Richmond Newspapers, Inc. v. Virginia*, 448 U.S. 555, 586-88 (1980) (Brennan, J., concurring) (quoting *New York Times Co. v. Sullivan*, 376 U.S. 254, 270 (1964)). That understanding also plays a prominent role in New York public policy, embodied in our Freedom of Information Law, which "permits the electorate to have sufficient information in order to make intelligent, informed

choices with respect to both the direction and scope of governmental activities." *See Matter of Fink v. Lefkowitz*, 47 N.Y.2d 567, 571 (1979).

As noted, the outcome of the Garner grand jury has also been the source of significant distrust in the fairness of the criminal justice system. This is a matter of deep concern to the entire community. But lawyers and judges have a special obligation to promote public respect for the system and to respond to public perceptions that the system is not operating fairly.

Under circumstances such as these, precedent from this Court, interpreting CPL § 190.25, allows the statutory presumption in favor of grand jury secrecy to be overcome where there is "a compelling and particularized need" for disclosure of grand jury materials and where the "balance of interests" tips in favor of disclosure. *Matter of District Attorney of Suffolk County*, 58 N.Y.2d 436, 444 (1983). In this regard, the case law further explains that the requirement of a "particularized need" is satisfied when the strong interest that supports disclosure cannot be effectively advanced without the disclosure requested. *Id.* at 444 (holding that disclosure is warranted when "sources other than the Grand Jury minutes are inadequate" to advance the compelling interest).

The decision of the Appellate Division below rested, first, on an erroneous legal application of the term "compelling and particularized need" and, second, on an abuse of discretion. As a threshold matter, both of these

grounds for denying disclosure of the Garner grand jury materials present questions of law for this Court's review. In *Matter of District Attorney of Suffolk County*, 58 N.Y.2d at 444-46, this Court reviewed and affirmed, as a matter of law, an Appellate Division decision that a lower court had misapplied the "compelling and particularized need" standard and had engaged in an "abuse of discretion" in deciding to release grand jury materials. *See also People v. Di Napoli,* 27 N.Y.2d 229 (1970) (where this Court affirmed as a matter of law an Appellate Division decision that upheld a lower court's exercise of discretion in granting disclosure of grand jury materials).

In this case, the Appellate Division made clear that its holding rested on a threshold question of law regarding its interpretation of the "compelling and particularized need" standard that preceded any exercise of discretion. (Ex. A at 6 of the Decision & Order) (noting that "without the initial showing of a compelling and particularized need, the question of discretion need not be reached") (citing *Matter of District Attorney of Suffolk County,* 58 N.Y.2d at 444). Even with regard to the ultimate exercise of discretion, this Court has held that "an abuse of discretion is a question of law, not of fact . . . [even if that discretion] was exercised in a factual setting." *People v. Jones*, 24 N.Y.3d 623, 629 (2014) (internal citation and quotation omitted). That remains so even if

this Court "must look at the facts in order to determine whether the discretion was indeed abused." *Id.*

Each of the two legal questions presented in this appeal merit a reversal of the Appellate Division's decision by this Court. The Appellate Division erroneously held that the legislative and public debate about grand jury reform prompted by the Garner grand jury did not constitute, as a matter of law, "a compelling and particularized need" for disclosure. (Ex. A at 6 of the Decision & Order). But there is a compelling interest in having a knowledgeable electorate and fully informed legislators deliberate over the nature and scope of any grand jury reform, and a separately compelling interest in restoring public confidence in the grand jury system, when that debate and that lack of confidence stem directly from the operation of the grand jury at issue. *People v. Cipolla*, 184 Misc.2d 880, 881 (Sup. Ct. Rensselaer Cty. 2000) (holding that disclosure is justified where "the integrity of the grand jury system ... is [in] question").

Where, as here, reforms have been proposed in response to the conduct of the Garner grand jury, there is a compelling interest in knowing what happened in that specific grand jury room and a particularized need to examine these specific grand jury materials, which provide the only possible source of that

knowledge. The Appellate Division's error forecloses an informed debate, while permitting public distrust of the grand jury proceedings to persist.

The Appellate Division also abused its discretion, in its application of the law, by determining that "the public interest in disclosure was outweighed by the dangers inherent in violating the secrecy of the grand jury proceeding." (Ex. A at 8 of the Decision & Order). There is no dispute of facts in the "balancing of interests" that must take place here. The Appellate Division abused its discretion in holding, based on undisputed facts, that "ensuring the independence of the grand jury, preventing the very real or potential danger that disclosure might present to the physical safety of the grand jurors and witnesses, and protecting them from public scrutiny and criticism, all militate in favor of maintaining grand jury secrecy." (Ex. A at 8 of the Decision & Order). The "balance of interests," instead, tips decidedly in favor of disclosure here. Knowing what happened in the Garner grand jury room is critical to a fully informed consideration of the nature of any reform, whereas the identity of witnesses and grand jurors can be protected by means of reasonable redactions. Under the circumstances of this case, it would, therefore, be proper for the Court to find an abuse of discretion and order disclosure of grand jury materials.

The claims that the NYCLU seeks to pursue are meritorious. And, because this appeal raises compelling interests and important questions of law, an appeal from the Appellate Division in this case should be granted.

DISCLOSURE STATEMENT PURSUANT TO RULE 500.1(f)

The NYCLU hereby discloses that it is a non-profit, 501(c)(4) corporation, and is the New York State affiliate of the American Civil Liberties Union.

STATEMENT PURSUANT TO RULE 500.17(b) IN SUPPORT OF A CALENDAR PREFERENCE

In the event that this Court grants leave to appeal, the NYCLU further requests a calendar preference pursuant to Rule 500.17(b) of this Court. Specifically, the NYCLU requests that this matter be calendared no later than the November 2015 sitting so that the impending debate in the 2015-16 legislative session about reform of the grand jury process can proceed informed by what happened in the Garner grand jury proceedings. The NYCLU further requests that a scheduling order be issued requiring the submission of Appellant's opening brief by September 30, 2015; Respondent's brief by October 30, 2015; and Appellant's reply brief by November 13, 2015.

The compelling interest supporting disclosure relates to the call for grand jury reform as a result of the outcome of the Garner grand jury. As noted, legislative reform proposals are being considered and debated even though neither the Legislature nor the public can fully know why the grand jury reached the result that it did. The interest in having a fully informed legislative debate on this issue lies at the heart of the NYCLU application in this case. While several bills proposing amendments to the grand jury process were introduced in this year's legislative session,[5] the Legislature—lacking concrete information from the Garner grand jury materials to inform their policymaking decisions

[5] *See supra* note 3.

about the merits of various reform proposals—passed none. Nor did the Legislature pass any of the several bills proposing that independent monitors review cases involving unarmed people killed by police officers.[6] This state of paralysis was temporarily resolved by Governor Cuomo, who issued a one-year executive order appointing the Attorney General as special prosecutor, fully expecting the Legislature to take the issue of grand jury reform up again in the forthcoming legislative session. *See* Executive Order No. 147 (2015). But to ensure a permanent resolution, it is important to provide the Legislature, reconvening in January 2016, with the Garner grand jury materials to permit a fully informed legislative consideration of the need for and appropriate scope of any reform.

It is, therefore, important to permit this appeal to be heard sufficiently in advance of January 2016 to render a decision prior to that date. Summary review of this appeal, pursuant to Rule 500.11 of this Court, is inadequate because the important issues raised by this case require plenary consideration. Counsel from the office of the Richmond County District Attorney wrote, in an

[6] A.B. 6572, 238th Leg., Reg. Sess. (N.Y. 2015) (provides for the appointment of a special prosecutor for police brutality and misconduct cases); A.B. 4298, 238th Leg., Reg. Sess. (N.Y. 2015) (establishes a review board for police officer-involved deaths); S.B. 5746, 238th Leg., Reg. Sess. (N.Y. 2015) (establishing a review board for police officer-related deaths); A.B. 7228/S.B. 2180, 238th Leg., Reg. Sess. (N.Y. 2015) (creating a special investigation office to investigate the killings of unarmed civilians by a police officer); S.B. 716/A.B. 5524 238th Leg., Reg. Sess. (N.Y. 2015) (granting the attorney general jurisdiction to investigate and prosecute police misconduct).

email sent to Natalie Rea, counsel for the Legal Aid Society in its parallel appeal in this controversy, that it "cannot agree to a preference."

EXHIBIT A

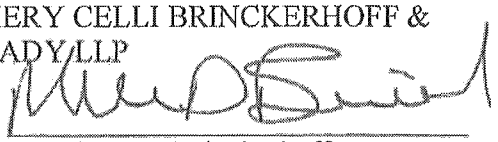
SUPREME COURT OF THE STATE OF NEW YORK
APPELLATE DIVISION, SECOND DEPARTMENT

In the Matter of the Investigation into the Death of Eric Garner, LETITIA JAMES, New York City Public Advocate, Petitioner-Applicant, -against- DANIEL DONOVAN, Richmond County District Attorney, Respondent.	AD No. 2015-02774 **NOTICE OF ENTRY**

PLEASE TAKE NOTICE that the attached is a true copy of an Order dated July 29, 2015 that was duly entered in the Office of the Clerk of the Appellate Division of the Supreme Court for the Second Department on July 29, 2015.

Dated: August 10, 2015
New York, New York

EMERY CELLI BRINCKERHOFF & ABADY LLP

By: 
Matthew D. Brinckerhoff
R. Orion Danjuma

600 Fifth Ave., 10th Floor
New York, New York 10020
(212) 763-5000

Jennifer Levy, Esq
General Counsel - Litigation
New York City Public Advocate
1 Centre Street, 15th Floor North
New York, NY 10007
(212) 669-2175
Attorneys for New York City Public Advocate Letitia James

BY U.S. MAIL TO:

To: Richmond County District Attorney
Attention: Anne Grady, Esq.
130 Stuyvesant Place
Staten Island, NY 10301
(718) 876-6300

Seymour W. James, Jr.
Natalie Rea
The Legal Aid Society
199 Water Street, 5th Floor
New York, NY 10038
(212) 577-3403

Arthur Eisenberg
Corey Stoughton
New York Civil Liberties Union Foundation
125 Broad Street, 19th Floor
New York, NY 10004
(212) 607-3300

James I. Meyerson
Laura D. Blackburne
Attorneys for Petitioners-Appellants, NAACP
1065 Avenue of the Americas, Suite 300
New York, NY 10018
(718) 876-6300

Supreme Court of the State of New York
Appellate Division: Second Judicial Department

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_____AD3d_____ Argued - June 16, 2015

MARK C. DILLON, J.P.
JOHN M. LEVENTHAL
LEONARD B. AUSTIN
SANDRA L. SGROI, JJ.

2015-02774 DECISION & ORDER

In the Matter of Letitia James, etc., appellant,
v Daniel Donovan, etc., respondent-respondent.
(Index No. 80304/14)

In the Matter of Legal Aid Society, appellant,
v Daniel Donovan, etc., respondent-respondent.
(Index No. 80296/14)

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appellant, v Daniel Donovan, etc., respondent-respondent.
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In the Matter of NYP Holdings, Inc., etc., petitioner,
v Daniel Donovan, etc., respondent.
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In the Matter of Staten Island Branch of National
Association for Advancement of Colored People,
etc., et al., appellants, v Daniel Donovan, etc.,
respondent-respondent.
(Index No. 80009/15)

Jennifer Levy, New York, N.Y., and Emery Celli Brinckerhoff & Abady, LLP, New York, N.Y. (Matthew D. Brinckerhoff and Orion Danjuma of counsel), for appellant Letitia James, as Public Advocate for the City of New York (one brief filed).

Seymour W. James, Jr., New York, N.Y. (Natalie Rea of counsel), for appellant Legal Aid Society.

Arthur Eisenberg and Corey Stoughton, New York, N.Y., for appellant New York Civil Liberties Union.

James I. Myerson and Laura D. Blackburne, New York, N.Y., for appellants Staten Island Branch of National Association for Advancement of Colored People and New York State Conference of Branches of National Association for Advancement of Colored People.

Daniel L. Master, Jr., Acting District Attorney, Staten Island, N.Y. (Morrie I. Kleinbart and Anne Grady of counsel), for respondent-respondent.

Stoll, Glickman & Bellina, LLP, Brooklyn, N.Y. (Andrew B. Stoll of counsel), for The Black, Puerto Rican, Hispanic, and Asian Legislative Caucus of the New York State Legislature, amicus curiae.

Sylvia Gail Kinard and Tobias Pinckney, Brooklyn, N.Y. (Elizabeth Roberts and Kevin Ferere on the brief), for Medgar Evers College Legal Pathways Program, amicus curaie.

Bruce D. Brown, Gregg P. Leslie, and Tom Isler, Washington, D.C., for Reporters Committee for Freedom of the Press, amicus curiae, and Davis Wright Tremaine, LLP, New York, N.Y. (Laura R. Handman of counsel), for Advance Publications, Inc., American Society of News Editors, Association of Alternative Newsmedia, Bloomberg, L.P., BuzzFeed, Cable News Network, Inc., Center for Investigative Reporting, Courthouse News Service, Daily News, L.P., Dow Jones & Company, Inc., First Amendment Coalition, First Look Media, Inc., Investigative Reporting Workshop at American University, The McClatchy Company, MediaNews Group, Inc., The National Press Club, National Press Photographers Association, The New York Times Company, News 12, Newsday, LLC, North Jersey Media Group, Inc., NYP Holdings, Inc., Online News Association, Radio Television Digital News Association, Reuters America, LLC, The Seattle Times Company, Society of Professional Journalists, Tully Center for Free Speech, and The Washington Post, amici curiae (one brief filed).

In separate proceedings to unseal and release grand jury minutes and evidence based on CPL 190.25(4)(a), Letitia James, as Public Advocate for the City of New York, the Legal Aid Society, the New York Civil Liberties Union, and the Staten Island Branch of the National Association for the Advancement of Colored People and the New York State Conference of Branches of the National Association for the Advancement of Colored People separately appeal, as

limited by their respective briefs, from so much of an order of the Supreme Court, Richmond County (Garnett, J.), dated March 19, 2015, as denied each of their respective petitions.

ORDERED that the order is affirmed insofar as appealed from, without costs or disbursements.

These appeals arise out of the death of Eric Garner on July 17, 2014, and a grand jury's decision not to return an indictment against the target or targets of its investigation. After impaneling a grand jury to hear evidence concerning the circumstances of Garner's death, the District Attorney of Richmond County (hereinafter the District Attorney), based on CPL 190.25(4)(a), petitioned the Supreme Court, and was granted permission, to disclose to the public limited information regarding the nature and scope of the grand jury proceedings. The District Attorney did not seek, at that time, the disclosure of any grand jury testimony or exhibits. The Supreme Court permitted disclosure regarding the period of time during which the grand jury sat, the number and types of witnesses who testified, and the number and types of exhibits admitted into evidence. The Supreme Court also disclosed the relevant principles of law on which the grand jurors were instructed, and that the grand jury, in conformity with CPL 190.60 and 190.75, voted to file its findings of dismissal. Rather than quelling public debate about the grand jury proceedings, the limited disclosure instead engendered a call for full disclosure of the minutes of the grand jury's proceedings, and the exhibits and instructions provided to the grand jury.

These appeals involve the subsequent petitions filed by Letitia James, as Public Advocate for the City of New York (hereinafter the Public Advocate), the Legal Aid Society, the New York Civil Liberties Union, and the Staten Island Branch of the National Association for the Advancement of Colored People and the New York State Conference of Branches of the National Association for the Advancement of Colored People (hereinafter together the N.A.A.C.P. petitioners), based upon CPL 190.25(4)(a), to unseal and release the grand jury minutes to themselves and to the general public, including transcripts of testimony, exhibits, information about certain grand jurors, and legal instructions. Each of these petitioners seeks disclosure for the purpose of understanding the grand jury's decision to not return an indictment, promoting transparency in the grand jury process, restoring confidence in the criminal justice system, and engaging in meaningful discussions about reform of the grand jury process and police practices. Certain petitioners proposed limiting the scope of the materials disclosed to the public and redacting any names of, and identifying information about, the witnesses and grand jurors. In the order appealed from dated March 19, 2015, the Supreme Court denied the petitions on the grounds that each of the petitioners failed to establish a "compelling and particularized" need for disclosure and, in any event, the public interest in preserving grand jury secrecy outweighed the public interest in disclosure.

Preliminarily, we note that the disclosure issues raised by the District Attorney in the initial proceeding were different than the issues presented by the current petitions. Accordingly, the determination made in the District Attorney's initial proceeding does not control the instant proceedings (*see Ryan v New York Tel. Co.,* 62 NY2d 494, 500-501). Moreover, the partial

disclosure ordered by Justice Rooney in that proceeding does not, in and of itself, open the door to the disclosure of additional grand jury testimony, exhibits, and information (*see Matter of Carey*, 45 Misc 3d 187 [Sup Ct, Wyoming County], *affd* 68 AD2d 220).

We reject the District Attorney's contention that the subject order is nonappealable. The order appealed from is civil, rather than criminal, in nature, "for although it relates to a criminal [investigation], it does not affect the criminal [investigation] itself, but only a collateral aspect of it," namely, the unsealing and release of the grand jury minutes (*Matter of Hynes v Karassik,* 47 NY2d 659, 661 n 1; *see People v M.E.,* 121 AD3d 157, 159; *People v Anonymous,* 7 AD3d 309, 310; *People v Purley,* 297 AD2d 499, 501).

However, the Public Advocate lacks capacity to maintain a proceeding based on CPL 190.25(4)(a). The issue of legal capacity "requires an inquiry into the litigant's status, i.e. its 'power to appear and bring its grievance before the court'" (*Wells Fargo Bank Minn., N.A. v Mastropaolo*, 42 AD3d 239, 242, quoting *Community Bd. 7 of Borough of Manhattan v Schaffer*, 84 NY2d 148, 155). The authority of the Public Advocate is expressly limited to that set forth in the New York City Charter. Section 24(f)(4) of the New York City Charter, which enables the Public Advocate, in essence, to oversee city agencies, perform related investigations, and attempt to resolve individual complaints concerning city services, does not extend to allegations of conduct that may constitute a crime. In fact, the Public Advocate is required to forward complaints alleging potential criminal conduct to the New York City Department of Investigation or the appropriate prosecuting attorney or other law enforcement agency (*see* NY City Charter § 24[k]). The Public Advocate's authority is otherwise limited to her intra-city services and agency oversight, which specifically does not include oversight of constitutionally established offices such as county district attorneys and the courts (*see* NY Const art XIII; NY City Charter § 24[f][4]; *People v Ianniello,* 21 NY2d 418, 424). We note that no provision of the City Charter expressly authorizes the Public Advocate to commence litigation. Although the First Department has held that section 24(j) of the City Charter impliedly confers upon the Public Advocate the capacity to bring a proceeding under CPLR article 78 to compel a city agency to comply with the Public Advocate's request for records and documents (*see Matter of Green v Safir*, 255 AD2d 107), that holding is inapplicable here. The Public Advocate's capacity to bring the instant proceeding cannot be derived by "necessary implication" from her oversight and investigatory responsibilities as set forth in the City Charter (*see Community Bd. 7 of Borough of Manhattan v Schaffer*, 84 NY2d at 159). To the extent that section 24(j) of the New York City Charter authorizes the Public Advocate to be provided with timely access to records and documents of city agencies as necessary to complete her investigations, the grand jury records at issue are not generated by city agencies, and her authority is limited to investigations required of her by the Charter. Further, to the extent our concurring colleague relies upon the definition of "agency" contained in New York City Charter § 1150(2) to suggest that the Public Advocate may engage in the oversight of and obtain records from any public entity that is paid in whole or in part from the City's treasury, such a general definition must yield to the more specific language of New York City Charter § 24(f) and (k), which exempts courts and district attorneys from the Public Advocate's oversight. "Whenever there is a general and a particular provision in the same statute, the general

does not overrule the particular but applies only where the particular enactment is inapplicable" (McKinney's Cons Laws of NY, Book 1, Statutes § 238). Therefore, despite the general language in New York City Charter § 1150 defining the term "agency," the specific proscriptive language of the Public Advocate's functions, as defined in New York City Charter § 24, cannot be construed as intending to confer upon the Public Advocate any authority to civilly review, oversee, or investigate district attorneys' offices in the substantive performance of their criminal law-related prosecutorial responsibilities. Accordingly, rather than reaching the merits of the Public Advocate's petition, the Supreme Court should have denied it on the ground of lack of capacity.

Unlike the Public Advocate, the purpose and capacity of the remaining appellants (hereinafter collectively the appellants) is not expressly limited by the City Charter or other statutory or decisional authorities. The District Attorney's contention that the appellants lacked "standing" to seek disclosure because they are not among the individuals and agencies specifically enumerated in CPL 160.50(1)(d) is without merit. While it is true that none of the appellants falls within the six statutory exceptions to the sealing provision under CPL 160.50(1)(d), that statute is inapplicable to the extent that the appellants are seeking disclosure based on CPL 190.25(4)(a). Indeed, courts have routinely considered requests for disclosure based on CPL 190.25(4)(a) by individuals and agencies other than those specifically enumerated in CPL 160.50(1)(d) (*see e.g. People v Di Napoli,* 27 NY2d 229; *Matter of Quinn [Guion],* 293 NY 787; *Matter of Aiani v Donovan,* 98 AD3d 972; *Roberson v City of New York,* 163 AD2d 291; *People v Lindsay,* 188 Misc 2d 757 [Cattaraugus County Ct]; *People v Cipolla,* 184 Misc 2d 880 [Rensselaer County Ct]; *Matter of FOJP Serv. Corp.,* 119 Misc 2d 287 [Sup Ct, NY County]). In any event, the list of parties permitted to seek the unsealing of records under CPL 160.50(1)(d) has been expanded in "extraordinary circumstances" (*Matter of New York State Commn. on Jud. Conduct v Rubenstein,* 23 NY3d 570, 581 [internal quotation marks omitted]; *Matter of New York State Police v Charles Q.,* 192 AD2d 142, 145 [internal quotation marks omitted]), upon a showing of a "compelling demonstration" (*Matter of New York State Police v Charles Q.,* 192 AD2d at 145 [internal quotation marks omitted]) that disclosure was necessary, which is synonymous with the burden under CPL 190.25(4)(a).

Turning to the merits, "'[t]he primary function of the Grand Jury in our system is to investigate crimes and determine whether sufficient evidence exists to accuse a citizen of a crime and subject him or her to criminal prosecution'" (*People v Burch,* 108 AD3d 679, 680, quoting *People v Calbud, Inc.,* 49 NY2d 389, 394). "Grand jury proceedings are secret, and no grand juror, or other person specified in subdivision three of this section or section 215.70 of the penal law may, except in the lawful discharge of his duties or upon written order of the court, disclose the nature or substance of any grand jury testimony, evidence, or any decision, result or other matter attending a grand jury proceeding" (CPL 190.25[4][a]). New York case law recognizing the sanctity of grand jury secrecy dates as far back as the year 1825 (*see Ex parte Tayloe,* 5 Cow 39), and the predecessor statute of CPL 190.25 dates back from at least 1881 (*see* Code Crim Proc §§ 256, 257, 258). So strong are the principles of grand jury secrecy and the policies underlying it that unauthorized disclosure of grand jury evidence is a felony in New York (*see* Penal Law § 215.70). While "secrecy of grand jury minutes is not absolute" (*People v Di Napoli,* 27 NY2d at 234; *see Matter of District*

Attorney of Suffolk County, 58 NY2d 436, 443; *Roberson v City of New York,* 163 AD2d at 291), "a presumption of confidentiality attaches to the record of Grand Jury proceedings" (*People v Fetcho,* 91 NY2d 765, 769).

The legal standard that must initially be applied to petitions seeking the disclosure of grand jury materials is whether the party seeking disclosure can establish a "compelling and particularized need" for access to them (*People v Robinson,* 98 NY2d 755, 756; *see Matter of District Attorney of Suffolk County,* 58 NY2d at 444; *Matter of Police Commr. of City of N.Y. v Victor W.,* 37 AD3d 722 [internal quotation marks omitted]). Only if the compelling and particularized need threshold is met must the court then balance various factors to determine whether the public interest in the secrecy of the grand jury is outweighed by the public interest in disclosure (*see People v Robinson,* 98 NY2d at 756; *Matter of Lungen v Kane,* 88 NY2d 861, 862-863; *Matter of District Attorney of Suffolk County,* 58 NY2d at 443-444; *People v Di Napoli,* 27 NY2d at 234-235; *Matter of Aiani v Donovan,* 98 AD3d at 973-974; *Matter of Police Commr. of City of N.Y. v Victor W.,* 37 AD3d 722). The decision as to whether to permit disclosure is committed to the trial court's discretion (*see People v Di Napoli,* 27 NY2d at 234; *People v Eun Sil Jang,* 17 AD3d 693, 694). However, "without the initial showing of a compelling and particularized need, the question of discretion need not be reached, for then there simply would be no policies to balance" (*Matter of District Attorney of Suffolk County,* 58 NY2d at 444).

A party seeking disclosure will not satisfy the compelling and particularized need threshold simply by asserting, or even showing, that a public interest is involved. The party must, by a factual presentation, demonstrate why, and to what extent, the party requires the minutes of a particular grand jury proceeding "to advance the actions or measures taken, or proposed (e.g. legal action, administrative inquiry or legislative investigation), to insure that the public interest has been, or will be, served" (*Matter of District Attorney of Suffolk County,* 86 AD2d 294, 299, *affd* 58 NY2d 436). "[I]f the supposed societal benefit of maximizing the public's awareness could by itself trump all other considerations," there would not exist a "legal presumption against disclosure of grand jury evidence, let alone a rule providing that such presumption may be overcome only by a showing of a particularized and compelling need for disclosure" (*Matter of Carey,* 45 Misc 3d at 213 [Sup Ct, Wyoming County]). Significantly, courts that have permitted disclosure of grand jury evidence have uniformly done so for some purpose other than generalized public interest and dissemination (*see People v Di Napoli,* 27 NY2d 229; *Matter of Quinn,* 293 NY 787; *Matter of Aiani v Donovan,* 98 AD3d at 973-974; *Matter of Scotti,* 53 AD2d 282; *People v Werfel,* 82 Misc 2d 1029 [Sup Ct, Queens County]; *cf. People v Cipolla,* 184 Misc 2d 880).

Despite the intense public interest in this case, which this Court recognizes, the Supreme Court properly determined that the appellants' reasons do not constitute a compelling and particularized need for disclosure of the requested grand jury materials (*see Matter of District Attorney of Suffolk County,* 58 NY2d 436; *Matter of Police Commr. of City of N.Y. v Victor W.,* 37 AD3d at 722; *Matter of Hynes [Patrolmen's Benevolent Assn.],* 179 AD2d 760; *Ruggiero v Fahey,* 103 AD2d 65; *Matter of Carey [Fischer],* 68 AD2d 220; *Matter of Carey,* 45 Misc 3d 187; *Matter*

of NYP Holdings, 196 Misc 2d 708 [Sup Ct, Kings County]; *Matter of Grand Jury Investigation,* 139 Misc 2d 282 [Sup Ct, Bronx County]; *Matter of Third Extraordinary Special Grand Jury, Convened Pursuant to Exec. Orders Nos. 42 & 43 of 1976,* 118 Misc 2d 93 [Sup Ct, Onondaga County]).

While many of the foregoing decisional authorities could be discussed in detail as controlling precedent, the *Matter of Hynes* case merits particular note. *Matter of Hynes* arose out of a well-publicized and highly charged incident in 1991 in Crown Heights, Brooklyn, when a vehicle struck and killed a seven-year-old child. A grand jury declined to indict the driver for any crime, which added considerably to community unrest over the incident. The District Attorney of Kings County sought to release the grand jury's minutes and records to quell the unrest, and to restore confidence in the grand jury system generally and in his office specifically (*see Matter of Hynes [Patrolmen's Benevolent Assn.],* 179 AD2d at 760). This Court upheld the Supreme Court's denial of the requested disclosure, finding that curbing community unrest and restoring faith in courts and prosecutors did not represent a compelling and particularized need, as is necessary to overcome the presumption of confidentially attached to grand jury proceedings (*see id.* at 760-761). The similarities between the circumstances of *Matter of Hynes* and those presented here are striking. Although the target of the grand jury proceedings in *Matter of Hynes* was a civilian, and the targets here are public servants, we find that distinction to be without a difference to the resolution of this case.

In addition, the appellants have failed to demonstrate that relevant information cannot be obtained from sources other than the grand jury minutes to permit lawmakers to fashion legislation, if appropriate, concerning reform of the grand jury process and police practices (*see Matter of District Attorney of Suffolk County,* 58 NY2d at 444-445; *Matter of Third Extraordinary Special Grand Jury, Convened Pursuant to Exec. Orders Nos. 42 & 43 of 1976,* 118 Misc 2d at 97). These sources may include, but are not necessarily limited to, reports and records of news media, and the City's Department of Investigation, Civilian Complaint Review Board, Police Department, and Law Department. The appellants' argument that there is a compelling and particularized need for disclosing the grand jury materials in order to help shape legislative debate at the State Capitol for potential grand jury reform is unpersuasive. The appellants failed to establish how or in what manner these grand jury materials would inform legislative debate beyond the facts that are already publicly known of the case, and beyond reform proposals that are already being discussed on their own merits.

The Supreme Court also properly determined that the Legal Aid Society failed to demonstrate a compelling and particularized need for access to the grand jury minutes for the purpose of ensuring better representation of its current and future clients. The Legal Aid Society did not indicate with any degree of specificity how the minutes or exhibits in this isolated case are necessary to that effort (*see Ruggiero v Fahey,* 103 AD2d at 70; *Matter of District Attorney of Suffolk County,* 86 AD2d at 299; *Matter of Grand Jury Investigation,* 139 Misc 2d at 285).

Moreover, contrary to the appellants' contentions, the instructions given to the grand jury

are entitled to a presumption of confidentiality, since CPL 190.25(4) affords protection to all "matter attending a grand jury proceeding" (CPL 190.25[4][a]), including records that were not even entered into evidence before the grand jury (*see Matter of Aiani v Donovan,* 98 AD3d at 973). Similarly, there is no support for the conclusory contention of the Legal Aid Society and the N.A.A.C.P. petitioners that noncivilian witnesses, namely, police officers and emergency medical technicians, have no expectation of privacy in their grand jury testimony, or that they are not entitled to the same legal protections as civilian witnesses (*see Melendez v City of New York,* 109 AD2d 13, 22-23). Accordingly, the appellants failed to show a compelling and particularized need for disclosure.

Although the appellants failed to make the requisite initial showing, because of the importance of this matter, this Court will reach the issue of whether "the public's right to know overrides such factors as the chilling effect disclosure might have on future Grand Jury investigations of this nature" (*Matter of Hynes [Patrolmen's Benevolent Assn.],* 179 AD2d at 761). The Supreme Court properly determined that the public interest in disclosure was outweighed by the dangers inherent in violating the secrecy of the grand jury proceeding (*see Ruggiero v Fahey,* 103 AD2d at 71-72; *Matter of Carey,* 45 Misc 3d at 209; *Matter of Grand Jury Investigation,* 139 Misc 2d 282).

The most frequently mentioned purposes or rationales for preserving grand jury secrecy include: "(1) prevention of flight by a defendant who is about to be indicted; (2) protection of the grand jurors from interference from those under investigation; (3) prevention of subornation of perjury and tampering with prospective witnesses at the trial to be held as a result of any indictment the grand jury returns; (4) protection of an innocent accused from unfounded accusations if in fact no indictment is returned; and (5) assurance to prospective witnesses that their testimony will be kept secret so that they will be willing to testify freely" (*People v Di Napoli,* 27 NY2d at 235; *see People v Seymour,* 255 AD2d 866, 867; *Ruggiero v Fahey,* 103 AD2d at 67-68). It is true that most of the factors enumerated in *People v Di Napoli* (27 NY2d at 235) are not implicated here in light of the fact that the grand jury declined to return an indictment, and that the identities of the target, as well as of certain witnesses who testified before the grand jury, are already publicly known. However, ensuring the independence of the grand jury, preventing the very real or potential danger that disclosure might present to the physical safety of the grand jurors and witnesses, and protecting them from public scrutiny and criticism, all militate in favor of maintaining grand jury secrecy.

Indeed, if pre-indictment proceedings were made public, especially in high profile cases such as this, "[f]ear of future retribution or social stigma may act as powerful deterrents to those who would come forward and aid the grand jury in the performance of its duties" (*Douglas Oil Co. of Cal. v Petrol Stops Northwest,* 441 US 211, 222; *see United States v Sells Engineering, Inc.,* 463 US 418, 424; *Butterworth v Smith,* 494 US 624, 636-637 [Scalia, J., concurring]). We note that in this particular instance, there is reportedly an ongoing federal investigation into the circumstances of the death of Eric Garner, and the disclosure of grand jury minutes here could negatively interfere with the investigative efforts of the United States Department of Justice and the willingness of witnesses to cooperate with those efforts.

Although the appellants suggest that redacting certain information will cure the impact of disclosure on the grand jury witnesses and jurors by narrowing the scope of certain materials disclosed to the public, under the circumstances of this case, redactions would not serve the purpose of preserving the witnesses' anonymity and thereby protect them from public criticism and scrutiny (*see Matter of Carey [Fischer]*, 68 AD2d at 228). Indeed, the earlier widespread dissemination of two videos capturing the incident would facilitate efforts by the media and the public to identify the source of any testimony disclosed.

The parties' remaining contentions either are without merit or have been rendered academic in light of our determination.

Accordingly, the Supreme Court properly denied the petitions submitted by the appellants to unseal and release grand jury minutes and evidence based on CPL 190.25(4)(a), and properly denied the petition submitted by the Public Advocate, but should have done so on the ground of lack of capacity to maintain this proceeding.

DILLON, J.P., AUSTIN and SGROI, JJ., concur.

LEVENTHAL, J., concurs in the result, and votes to affirm the order insofar as appealed from, with the following memorandum:

I agree with my colleagues in the majority that the order denying the petitions to unseal and release the subject grand jury minutes and evidence based on CPL 190.25(4) should be affirmed insofar as appealed from. I write separately to express my view that the petitioner Letitia James, as Public Advocate for the City of New York (hereinafter the Public Advocate), did not lack capacity to commence and maintain her proceeding.

The Public Advocate, an elected official with the power to sue, is a watchdog over New York City government (*see Matter of Madison Sq. Garden, L.P. v New York Metro. Transp. Auth.* 19 AD3d 284, 285; *Matter of Green v Safir,* 174 Misc 2d 400, 406 [Sup Ct, NY County]). Pursuant to New York City Charter § 24(j), the Public Advocate "shall have timely access to those records and documents of *city agencies* which the public advocate deems necessary to complete the investigations, inquiries and reviews required by this section" (emphasis added). The term "agency" is defined within the New York City Charter as "a city, county, borough, or other office, position, administration, department, division, bureau, board or commission, or a corporation, institution or agency of government, the expenses of which are paid in whole or in part from the city treasury" (NY City Charter § 1150[2]).

The District Attorney correctly acknowledges that its office is funded by the City of New York (*see* NY City Charter § 1125). Therefore, while the Office of the District Attorney is not

an arm of the City of New York (*see* NY Const art XIII; County Law § 700[1]; *see also Matter of Kelley v McGee,* 57 NY2d 522, 535-536), the City Charter provides that the Office of the District Attorney is a city agency for the limited purpose of determining the Public Advocate's capacity to request the subject relief. Furthermore, while the grand jury minutes and evidence at issue are not records of the Office of the District Attorney (*see Matter of Hall v Bongiorno,* 305 AD2d 508, 509), the District Attorney is in control of the grand jury proceedings (*see* CPL 190.25; *People v Huston,* 88 NY2d 400, 406; *People v Dawson,* 50 NY2d 311, 323) and is the custodian of such material (*see Matter of Temporary State Commn. of Investigation,* 47 Misc 2d 11, 13-14 [Nassau County Ct]).

Moreover, the majority's determination that the Public Advocate lacks capacity to maintain her proceeding is inconsistent with its determination that the other petitioners have such capacity in this matter. As the majority correctly observes, the list of parties permitted to seek the unsealing of records under CPL 160.50(1)(d) has been expanded in "extraordinary circumstances" (*Matter of New York State Commn. on Jud. Conduct v Rubenstein,* 23 NY3d 570, 581 [internal quotation marks omitted]; *Matter of New York State Police v Charles Q.,* 192 AD2d 142, 145 [internal quotation marks omitted]) upon a showing of a "compelling demonstration" that disclosure was necessary (*Matter of New York State Police v Charles Q.,* 192 AD2d at 145 [internal quotation marks omitted]). I further believe that this showing, applicable to all of the petitioners, is equivalent to, and coextensive with, a movant's burden under CPL 190.25(4)(a).

Therefore, in my view, the Public Advocate should be permitted to assert and maintain her proceeding so as to set forth her claim that she is empowered to investigate the alleged failure of the District Attorney in this matter by seeking disclosure of the subject grand jury minutes and evidence.

Addressing the merits, however, I agree with the majority's reasoning and determination that, among other things, the petitioners failed to present a compelling and particularized need for access to the subject material. Therefore, the Supreme Court properly denied their petitions.

ENTER:



Aprilanne Agostino
Clerk of the Court

EXHIBIT B

At a Civil Term, Part 22 of the Supreme Court of the State of New York, held in and for the County of Richmond, at the Courthouse thereof, 18 Richmond Terrace, Staten Island, New York, on 19th day of March 2015.

PRESENT:

THE HONORABLE WILLIAM E. GARNETT, J.S.C.

In the Matter of the Investigation into the Death of Eric Garner,	**DECISION AND ORDER**
	Richmond County Index Numbers:
Letitia James, New York City Public Advocate,	080304/2014
The Legal Aid Society,	080296/2014
The New York Civil Liberties Union,	080307/2014
NYP Holdings, Inc. a/k/a New York Post, and	080308/2014
The Staten Island Branch of The National Association For The Advancement of Colored People and The New York State Conference of Branches of The National Association For The Advancement of Colored People,	080009/2015
Petitioners,	
-against-	
DANIEL DONOVAN, Richmond County District Attorney,	
Respondent.	

INTRODUCTION

On July 17, 2014, Eric Garner died during a confrontation with New York City police officers.

The interaction between Mr. Garner and the police was recorded on a cellular phone. Ultimately, and before a grand jury heard the evidence in this case, that tape and the findings of the Medical Examiner's autopsy of Mr. Garner were widely disseminated. Very few members of the public had not formed an opinion about the conduct of the police.

A grand jury was convened on September 29, 2014 to examine the evidence concerning the death of Mr. Garner. On December 3, 2014, the grand jury concluded its inquiry and did not charge any person with the commission of a crime. Thereafter, the District Attorney summarized the grand jury's investigation in a statement authorized by another judge of this court. No grand jury testimony was disclosed in this statement.

In separate motions, the Public Advocate of the City of New York, the Legal Aid Society, the New York Civil Liberties Union (hereinafter, NYCLU), the National Association for the Advancement of Colored People (hereinafter, NAACP) and the owner of the New York Post moved this court to release the minutes of the grand jury pursuant to Criminal Procedure Law § 190.25 (4) (a). The District Attorney opposed the disclosure.

GRAND JURY SECRECY

The Constitution of the State of New York provides that "no person shall be held to answer for a capital or otherwise infamous crime [i.e., a felony] . . . unless on indictment of a grand jury . . ." (NY Const Art I, § 6). Thus, a district attorney may not prosecute a person for a felony or other crime in the Supreme Court without the acquiescence of a grand jury made up of lay jurors. The grand jury's decision to charge a person is manifested when it files an indictment with the Supreme Court.

This constitutional provision is implemented by Article 190 of the Criminal Procedure

Law. Pertinent to these motions is the admonition contained in CPL 190.25 (4) (a) that grand jury proceedings are secret and, in general, no person may disclose the nature or substance of any grand jury testimony without the written approbation of a court. This prohibition is enforced by Penal Law § 215.70 which makes it a felony to disclose grand jury testimony. The only exception to this proscription is that a person may disclose the substance of his/her testimony without approval. CPL 190.25 (4) (a).

Despite these statutory rules, the secrecy of grand jury testimony is not sacrosanct and the minutes of a grand jury may be divulged, in a court's discretion, in the appropriate case. *Matter of District Attorney of Suffolk County*, 58 NY2d 436 (1983). In general, disclosure is the exception to the rule. *Id.* at 444.

The law is bottomed on the "presumption of confidentiality [which] attaches to the record of grand jury proceedings." *People v Fetcho*, 91 NY2d 765, 769 (1998). To overcome the presumption of confidentiality, a movant must initially demonstrate "a compelling and particularized need for access to the Grand Jury material." *Matter of District Attorney of Suffolk County*, 58 NY2d at 444. This showing is required to demonstrate how a party has a basis to seek relief from a court. Moreover, the mere fact that disclosure is sought by a government agency will not necessarily warrant the breach of grand jury secrecy, nor will the mere general assertion that disclosure will be in the public interest. *Matter of District Attorney of Suffolk County*, 58 NY2d at 444-445.

Thus, each movant must first show a "compelling and particularized need" such as to demonstrate that the party has a greater stake in the disclosure than does any other citizen - even one critical of the grand jury's decision. The movant must explain the purpose for which the party seeks access to the minutes. *Id.* at 444.

Simply put, what would the movant do with the minutes if the movant got them?

Only after such a showing will a court move on to balance the competing interests in deciding whether to grant disclosure.

COLLATERAL ESTOPPEL

The earlier application of the District Attorney to another judge of this court for a limited disclosure does not collaterally estop the District Attorney from arguing in these cases that the movants do not have a "compelling and particularized need" for disclosure.

First, the District Attorney only asked for a limited summary of the work of the grand jury. No grand jury testimony or the substance of any testimony was released.

More to the point, as will be explained later in this decision, each party must show a "compelling and particularized need." Thus, even if the first judge was satisfied that the District Attorney had established a need for a summary, that decision does not preclude the District Attorney from opposing these motions or excuse these movants from making the requisite showing of a "compelling and particularized need."

"COMPELLING AND PARTICULARIZED NEED"

In those cases in which relief has been granted, the successful movant has demonstrated a nexus between the grand jury minutes and a "compelling and particularized need" for those minutes. *People v DiNapoli*, 27 NY2d 229 (1970) (Public Service Commission needed the minutes to adjust rates after a grand jury investigation had revealed evidence of "bid rigging"); *Matter of Quinn [Guion]*, 293 NY 787 (1944) (limited disclosure was allowed for the purpose of the removal of a village tax collector pursuant to the Public Officers Law); *People ex rel Hirshberg v Board of Supervisors*, 251 NY 156 (1929) (a Commissioner sought reimbursement from the District Attorney for the county); *Matter of Aiani v Donovan*, 98 AD3d 972 (2d Dept 2012) (bank records subpoenaed from the United Arab Emirates for a grand jury investigation, not the minutes, were disclosed where the movant had no other means to execute on a large civil judgment); *Jones v State*, 62 AD2d 44 (4th Dept 1978) (statements made by witnesses, not grand jury minutes, were given to the state police for disciplinary proceedings); *Matter of City of Buffalo*, 57 AD2d 47 (4th Dept 1977) (the city's corporation counsel needed grand jury minutes to sue persons who had been

paid for "no show" jobs); *Matter of Scotti*, 53 AD2d 282 (4th Dept 1976) (limited release to State Police superintendent and Correction commissioner for disciplinary actions); *People v Lindsey*, 188 Misc2d 757 (Cattaraugus County Ct 2001) (in a sixty-five [65] year-old murder case in which the grand jury minutes had earlier been released by the prosecutor, the defendant's son was given access to the minutes to ensure the accuracy of a prospective movie script); *People v Cipolla*, 184 Misc2d 880 (Rensselaer County Ct 2000) (in a case in which the grand jury minutes had earlier been released, the minutes were given to litigants to further a federal lawsuit); *Matter of FOJP Service Corp.*, 119 Misc2d 287 (Sup Ct, New York County 1983) (a nonprofit employer sought grand jury minutes to further a "RICO" civil suit against attorneys who had unethically approached prospective clients); *People v Werfel*, 82 Misc2d 1029 (Sup Ct, Queen County 1975) (the New York City Department of Investigation, tasked with investigating the background of a judicial candidate, sought the minutes of a grand jury which had heard testimony about a narcotics case of which the candidate had been the subject); *People v Behan*, 37 Misc2d 911 (Onondaga County Ct 1962) (a special prosecutor appointed to investigate corruption in the prisons was granted access to grand jury minutes); *Matter of Crain*, 139 Misc 799 (Court of General Sessions, New York County 1931) (grand jury minutes were disclosed to a commissioner appointed to investigate judicial corruption).

Thus, in each of these cases, the movants were able to demonstrate a "compelling and particularized need" for disclosure. Each movant was able to give a specific reason for the disclosure of the minutes. Each movant could answer the question: What would you do with the minutes if you were given them? Thus, a movant must have a strong reason for disclosure unique to that movant.

The case law also demonstrates that even movants with law enforcement responsibilities or governmental authority must also make the same initial showing of a "compelling and particularized need."

In the seminal case of *Matter of District Attorney of Suffolk County*, 58 NY2d 436 (1983), the District Attorney, who had been selected by the Suffolk County legislature to bring a federal lawsuit on behalf of the county, was denied access for having failed to

establish a "compelling and particularized need."

Similarly, in *Matter of Hynes*, 179 AD2d 760 (2d Dept 1992), the Appellate Division of the Supreme Court for the Second Judicial Department found wanting the District Attorney's request for the release of grand jury minutes to quell community unrest and to restore confidence in the criminal justice system as "compelling and particularized need[s]."

Of particular note are the efforts by public officials over the years to have the minutes of the Wyoming County grand jury which investigated the 1971 Attica prison uprising released. Since 1975, governors and attorneys general of this State have attempted to have the grand jury minutes released. *Matter of Carey*, 68 AD2d 220 (4th Dept 1979).

Most recently, Attorney General Schneiderman moved to disclose the minutes of the grand jury that had been quoted, but redacted, in the "Meyer report." That report had concluded, in part, that there had been prosecutorial misjudgments in the investigation. The court ruled that, even after nearly forty (40) years since the report, the Attorney General's contention that the disclosure of the redacted grand jury minutes would inform the public and complete the historical record did not constitute "compelling and particularized need." *Matter of Carey*, 45 Misc3d 187 (Sup Ct, Wyoming County 2014).

Thus, as with any other movant, a public official, even one with prosecutorial duties, must make the same showing of a "compelling and particularized need" to obtain the release of grand jury minutes.

THE PUBLIC ADVOCATE

The Public Advocate has not demonstrated a "compelling and particularized need" for disclosure of the grand jury minutes.

Although the Public Advocate is a citywide elected official, the Advocate has no direct role in the criminal justice system. The New York City Charter, in Chapter 2, entitled, "Council" describes the work of the Public Advocate. Specifically, in section 24, the Public Advocate is permitted to participate in the discussions of the City Council but may not vote. The Advocate's primary function is to receive complaints about, and monitor, city agencies.

By section 24 (k), the Public Advocate must refer any criminal complaint to the Department of Investigation "or . . . to the appropriate prosecutorial attorney or other law enforcement agency." Thus, the Advocate has no explicit role in the city's criminal justice system. To the contrary, the Public Advocate is mandated to refer criminal complaints to other authorities. Clearly, by the provisions of the City Charter, the Public Advocate's role in criminal matters is severely circumscribed.

Our criminal justice system is a state, not city, system. The same procedures including those for the grand jury obtain throughout the state. Thus, the City Council of which the Public Advocate is a non-voting member cannot enact laws which would alter the New York State grand jury system.

Counsel for the Public Advocate argued that these minutes are needed to make recommendations and issue reports regarding police conduct including the use of excessive force. The Advocate's request for the minutes in this one, solitary case is undermined by the fact that the Public Advocate has a myriad of sources for reviewing police actions.

Besides the tape in this case, the Public Advocate, as a monitor of city agencies, has access to the records of the Department of Investigation, the Civilian Complaint Review Board, the Police Department and the City's Law Department which litigates federal lawsuits against police officers charged with the use of excessive force and other misconduct. Thus, the Public Advocate has a plethora of sources from which the Advocate can glean evidence to support her positions regarding the policing of the criminal law in New York City.

The Public Advocate has no "compelling and particularized need" to gain access to the minutes of the grand jury in this one case to fulfill her Charter responsibilities. *Matter of District Attorney of Suffolk County*, 58 NY2d at 444. The Public Advocate's position in the constellation of public officials makes the Advocate no different from any other public official who argues for change in the administration of justice in New York State.

The Legal Aid Society has not shown a "compelling and particularized need" for the disclosure of the grand jury minutes.

In its brief, the Society asserted, presumably to show a need for disclosure, that it had represented Eric Garner. As a matter of law, that representation ended upon his death. *See e.g., People v Drayton*, 13 NY3d 902 (2009); *People v Mintz*, 20 NY2d 770 (1967).

The Society further contended that other of its clients had been adversely impacted by the events surrounding the death of Eric Garner. Nevertheless, at oral argument, no effect on other clients was articulated or quantified. The court took the Society's position at oral argument to be that the Society needed the grand jury minutes for future reference in representing clients whose cases will be presented to a grand jury and as a strategic resource.

Clearly, none of these arguments established a "compelling and particularized need" for the release of these minutes.

THE NYCLU & THE NAACP

The NYCLU and the NAACP have both contended that the disclosure of the grand jury minutes is necessary to foster transparency and demonstrate fairness to the public. The statutory phrase "compelling and particularized need" cannot be conflated by ignoring a demonstrable "need" by simply arguing that disclosure *per se* is compelling. Under the law, a compelling interest in a case is not a "compelling and particularized need."

Therefore, these movants have not established a "compelling and particularized need" for the minutes. *Matter of Hynes*, 179 AD2d 760 (2d Dept 1992); *Matter of Carey*, 45 Misc3d 187 (Sup Ct, Wyoming County 2014).

THE NEW YORK POST

Finally, the entity which owns the New York Post has also failed to demonstrate a "compelling and particularized need" for the minutes. The newspaper would merely publish all, or part of, the minutes and might use them as grist for its editorial mill.

The Court has not found any case in which the testimony and evidence adduced in a grand jury has been disseminated to the public by the media.

Journalistic curiosity is simply not a legally cognizable need under the law.

CONCLUSION

Compelling and Particularized Need

Each of the movants has failed to establish that it has the required "compelling and particularized need" for the grand jury minutes. In every case cited at oral argument or in the motion papers in which disclosure was granted, there existed a clear nexus between the movant's need and the grand jury minutes.

In summary, the movants in this case merely ask for disclosure for distribution to the public. This request is not a legally cognizable reason for disclosure.

What would they use the minutes for? The only answer which the court heard was the possibility of effecting legislative change. That proffered need is purely speculative and does not satisfy the requirements of the law.

Balancing Interests

The second part of the analysis would be the balancing of interests which attach to grand jury proceedings. Of course, this balancing process begins only after a movant has satisfied the "compelling and particularized need" requirement. *Matter of District Attorney of Suffolk County*, 58 NY2d at 444.

Assuming for the sake of argument that one of the movants had established a "compelling and particularized need" for disclosure, the balancing of interests would not have justified disclosure. The disclosure of minutes would have undermined the overriding

concern for the independence of our grand juries. *Id.*

In *People v DiNapoli*, 27 NY2d 229, 235 (1970), the Court of Appeals suggested five factors for the court to consider[1]. Only three are arguably applicable in this case.

The shadow of a federal criminal investigation looms over these proceedings. Presumably, if the United States Department of Justice proceeds, the same witnesses and evidence will be examined. Revealing the minutes of the state grand jury may place witnesses in jeopardy of intimidation or tampering if called to a federal grand jury or to a federal trial. Witnesses might be approached to adjust or alter their testimony if perceived to have been too favorable or unfavorable to any of the parties.

In addition, those who were not charged by the grand jury have a reputational stake in not having their conduct reviewed again after the grand jury had already exonerated them.

Most important to the integrity and thoroughness of the criminal justice system is the assurance to witnesses that their testimony and cooperation are not the subject of public comment or criticism. This concern is particularly cogent in "high publicity cases" where the witnesses' truthful and accurate testimony is vital. It is in such notorious cases that witnesses' cooperation and honesty should be encouraged - not discouraged - for fear of disclosure.

Ironically, if courts routinely divulged grand jury testimony, disclosure would largely impact serious and newsworthy cases. It was contended that disclosure in a case such as this would be no different from disclosure after a defendant had been indicted. This argument does not justify disclosure. When a defendant is charged with a crime, the secrecy of the grand jury is trumped by the defendant's constitutional right to confront the witnesses against him (US Constitution, Sixth Amendment) and the defendant's statutory right to discovery

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[1] "Those most frequently mentioned by courts and commentators are these: (1) prevention of flight by a defendant who is about to be indicted; (2) protection of the grand jurors from interference from those under investigation; (3) prevention of subornation of perjury and tampering with prospective witnesses at the trial to be held as a result of any indictment the grand jury returns; (4) protection of an innocent accused from unfounded accusations if in fact no indictment is returned; and (5) assurance to prospective witnesses that their testimony will be kept secret so that they will be willing to testify freely."

pursuant to Article 240 of the Criminal Procedure Law. These mandates would compel a limited disclosure. However, when no charges are voted by a grand jury, these rights do not come into play. Thus, this argument fails.

Finally, the decision of the grand jurors in this case was theirs alone, after having heard all of the evidence, having been instructed on the law and having deliberated. Their collective decision should not be impeached by unbridled speculation that the integrity of this grand jury was impaired in any way.

FINAL CONCLUSION

In this case, based on the arguments of the movants and the current state of the law, a decision in favor of the movants would constitute an unjustified departure from the plain statutory language of CPL 190.25 (4) (a) and case law. The movants argue for a "sea change" in the law governing the disclosure of grand jury minutes. If such a dramatic change is warranted, that change should be effected by the state legislature. The judiciary is not the branch of government for statutory repeal or amendments.

CPL 190.25 (4) (a), as interpreted in countless cases over many years, would have been judicially repealed or modified if courts succumb to the temptation to order disclosure in unique or high-publicity cases without reference to clear legal precedent. The law's uniformity would be lost and the law would vary from court to court. The *ad hoc* release of grand jury minutes would be based on a judge's subjective decision that a case was of singular importance or notoriety. If current, clearly articulated law governing the disclosure of grand jury minutes were abandoned each time a grand jury decision resulted in controversy, the law would have been changed by a judge. The rules of law established for the determinations of these motions would have been judicially amended and, in cases like

this one, the exception would have swallowed the rule[2]. *Matter of Carey*, 45 Misc3d 187, 213 (Sup Ct, Wyoming County 2014).

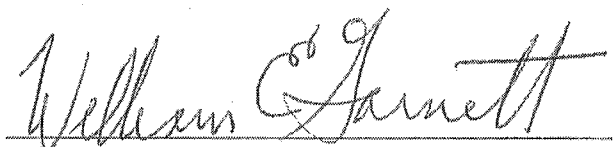
It bears repeating that under the law, a "compelling interest" in a case is not a "compelling or particularized need." If every newsworthy case were deemed compelling and, thus justified disclosure, the veil of grand jury secrecy would be lifted and every citizen's right to have fellow citizens, sitting on a grand jury, check the power of the police and the prosecutor without pressure from outside influences - real or perceived - would be imperiled.

Again, in summary, each movant has not established a "compelling and particularized need" for the release of the grand jury minutes and, if that legally-required showing had been made, disclosure, on balance, would not have been warranted.

Thus, the motions for disclosure are denied[3].

This opinion shall constitute the decision and order of the court.

ENTER



HON. WILLIAM GARNETT, J.S.C.

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[2] "At an even more basic level of analysis, this Court must point out that, if the public's right to know could be a paramount or overriding consideration here, there would not exist a general rule of grand jury secrecy in the first place. Nor, if the supposed societal benefit of maximizing the public's awareness could by itself trump all other considerations, would there exist a legal presumption against disclosure of grand jury evidence, let alone a rule providing that such presumption may be overcome only by a showing of a particularized and compelling need for disclosure. To adopt the Attorney General's position in this case would be to effectively displace the presumption against disclosure of grand jury evidence with a presumption favoring the earliest and widest public revelation of grand jury material, at least in the most important and notorious cases."

[3] The NAACP's motions to recuse and to refer the matter to the Grievance Committee of the Appellate Division of the Supreme Court for the Second Judicial Department are denied as meritless.